

may take under the description of children if there were no legitimate children at the time, or the illegitimate children are otherwise indentified as *personæ designatæ* (e). But a gift to A. for life, with remainder to his child or children, will not be taken to designate an illegitimate child of A. born previously to the date of the will, though A had no legitimate child at the date of the will, and was 57 years old, and so unlikely to have legitimate children (f).

3. **Trusts for corporations.** — So a trust of real estate cannot be declared in favour of a *corporation* without a licence from the Crown, for the same mischief would follow from putting equitable, as in putting legal, estates into mortmain (g).

4. **Trusts for alien.** — Where a trust of real estate was, before the late Act (h), declared in favour of an *alien*, the Crown might have claimed the benefit of it by suit in equity, [\*96] without the form of a previous \*inquisition, for the subject was sufficiently protected by the decree of the Court (a).

5. **Trust for charity.** — Neither lands nor property savouring of the realty can be conveyed upon trust for a *charity*, unless the requirements of the mortmain acts (b), as respects attestation by two witnesses and enrolment (c), and the absence of any reservation for the benefit of the grantor (d),

consider the judgments of the L.JJ., and more particularly that of Lord Selborne.

(c) Gabb v. Prendergast, 3 Eq. Rep. 648; Clifton v. Goodbun, 6 L. R. Eq. 278; Holt v. Sindrey, 7 L. R. Eq. 170; Savage v. Robinson, *ib.* 176; Lepine v. Bean, 10 L. R. Eq. 160; Crook v. Hill, 6 L. R. Ch. App. 311, S. C. *nom.* Hill v. Crook, 6 L. R. H. L. 265; Wilson v. Atkinson, 4 De G. J. & S. 455; Milne v. Wood, 42 L. J. N. S. Ch. 545; *In re Brown's Trust*, 16 L. R. Eq. 239; Dorin v. Dorin, 17 L. R. Eq. 403; Occleston v. Fullalove, 9 L. R. Ch. App. 147; *In re Goodwin's Trusts*, 17 L. R. Eq. 345; [*Re Humphries*, 24 Ch. D. 691.]

(f) Paul v. Children, 12 L. R. Eq. 16.

(g) See Shep. Touch. 509; Sand. on Uses, 339, note E. 15 Ric. 2. c. 5.

(h) 33 Vict. c. 14.

(a) See Dumoncel v. Dumoncel, 13 Ir. Eq. Rep. 92; Vin. Ab. Alien, A, 8; Godfrey v. Dixon, Godb. 275; Br. Feff. al. Uses, 389; King v. Holland, Al. 16; Styl. 21; Burney v. Macdonald, 15 Sim. 6; Burgess v. Wheate, 1 Eden, 187; Barrow v. Wadkin, 24 Beav. 1; see now 33 Vict. c. 14.

(b) 9 G. 2. c. 36; 24 Vict. c. 9; 25 & 26 Vict. c. 17. The 9 G. 4. c. 85, gives validity to informal purchases made before that Act.

(c) Doe v. Hawthorn, 2 B. & Ald. 96; Doe v. Munro, 12 M. & W. 845.

(d) Limbrey v. Gurr, 6 Mad. 151; Attorney-General v. Munby, 1 Mer. 327.